ADAM R.F. GUSTAFSON
Acting Assistant Attorney General
United States Department of Justice
Environment and Natural Resources Division
LUTHER L. HAJEK (CO Bar # 44303)
Trial Attorney
United States Department of Justice
Environment and Natural Resources Division
999 18th Street, North Terrace, Suite 600
Denver, CO 80202
Tel: (303) 241-0826 / Fax: (303) 844-1350
luke.hajek@usdoj.gov
Counsel for Defendants

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF ALASKA

NORTHERN ALASKA ENVIRONMENTAL CENTER, et al., Plaintiffs, DONALD J. TRUMP, President of the United States, et al., Defendants, and AMERICAN PETROLEUM INSTITUTE, et al., Intervenor-Defendants.	No. 3:25-cv-00038-SLG Honorable Sharon L. Gleason

DEFENDANTS' MEMORANDUM IN SUPPORT OF MOTION TO DISMISS PLAINTIFFS' SECOND AMENDED COMPLAINT

(Fed. R. Civ. P. 12(b)(1))

TABLE OF CONTENTS

Page

INTRODUCTION....1

BACKGROUND....2

I. The Outer Continental Shelf Lands Act....2

LEGAL STANDARD FOR A MOTION TO DISMISS....6

ARGUMENT....7

I. Plaintiffs Lack Standing and Their Claims Are Not Ripe....7

A. Plaintiffs Have Failed to Demonstrate Standing....8

CONCLUSION....8

TABLE OF AUTHORITIES

Page(s)

Cases

Bowen v. Energizer Holdings, Inc., 118 F.4th 1134 (2024).....8

Ctr. for Sustainable Econ. v. Jewell, 779 F.3d 588 (D.C. Cir. 2015).....2

Friends of the Earth v. Sanderson Farms, Inc., 992 F.3d 939 (9th Cir. 2021).....7

Leite v. Crane Co., 749 F.3d 1117 (9th Cir. 2014).....6

McCarthy v. United States, 850 F.2d 558 (9th Cir. 1988).....7

Native Village of Point Hope v. Jewell, 740 F.3d 489 (9th Cir. 2014).....5

Pacific Operators Offshore, LLP v. Valladolid, 132 S. Ct. 680 (2012).....3

Summers v. Earth Island Inst., 555 U.S. 488 (2009).....8

Thornhill Pub. Co. v. Gen. Tel. & Elecs. Corp., 594 F.2d 730 (9th Cir. 1979).....6

United States v. Florida, 363 U.S. 121 (1960).....3

United States v. Louisiana, 363 U.S. 1 (1960).....3

Statutes

43 U.S.C. § 1312.....3

43 U.S.C. § 1331(a).....3

43 U.S.C. § 1341(a).....6

43 U.S.C. § 1344.....4, 5

Rules

Fed. R. Civ. P. 12(b)(1).....6

Regulations

30 C.F.R. pt. 551.....5

Proclamation No. 2667, 10 Fed. Reg. 12,303 (Sept. 28, 1945).....3

INTRODUCTION

Plaintiffs' Second Amended Complaint ("Complaint") should be dismissed for lack of jurisdiction. In January 2025, just prior to the change in administration, former President Biden issued sweeping memoranda withdrawing large areas of the Arctic, Atlantic and Pacific Oceans, and the Gulf of America from oil and gas leasing. Upon taking office, President Trump decided to reverse those actions, returning those areas to the status they had occupied just two weeks before. Plaintiffs claim that it was unlawful for President Trump to reverse the withdrawals and that only Congress can do so. Plaintiffs are wrong on the merits, but the case should not get to that stage because their Complaint fails on multiple jurisdictional grounds.

It is a basic prerequisite to bringing a lawsuit that a plaintiff must establish an actual case or controversy under Article III of the Constitution. Plaintiffs fail this requirement because they have not pled any harms resulting from President Trump's decision to rescind the withdrawals. The Complaint generally describes impacts that could occur from oil and gas exploration and development, but lacks any allegation that such impacts are actually occurring or will imminently occur. Therefore, Plaintiffs lack standing. For similar reasons, Plaintiffs' claims are not ripe—they have not shown that their interests are affected by any oil and gas activities caused by President Trump's reversal. To the contrary, numerous steps remain

before their interests could be affected under the multi-stage leasing and development process set out in the Outer Continental Shelf Lands Act ("OCSLA").

Plaintiffs' claims against the President must also be dismissed because they are barred by sovereign immunity. The waiver of sovereign immunity in the Administrative Procedure Act ("APA") is not available based on well-established precedent; and Plaintiffs cannot evade that precedent by recasting their claims as so-called ultra vires claims. In addition, they lack a right of action to sue the President. The APA right of action is not available, and the right of action in OCSLA is limited to other types of claims. The Supreme Court has made clear that a plaintiff must have a right of action, even for constitutional claims, and Plaintiffs have not pled one.

Finally, the claims against the Secretary of the Interior and the Secretary of Commerce must be dismissed because the Complaint identifies no final action taken by either cabinet secretary.

BACKGROUND

I. The Outer Continental Shelf Lands Act

The Outer Continental Shelf ("OCS") of the United States "is a vast underwater expanse nearly equal in size to the Australian continent." *Ctr. for Sustainable Econ. v. Jewell*,

779 F.3d 588, 592 (D.C. Cir. 2015). The OCS includes "all submerged lands lying seaward" of coastal state jurisdiction. 43 U.S.C. § 1331(a); *see also Pacific Operators Offshore, LLP v. Valladolid*, 132 S. Ct. 680, 685 (2012). For most coastal states (except those adjacent to Texas, the Gulf coast of Florida, and certain states where the line has become fixed and no longer adjusts with the coastline), the inward boundary of the outer continental shelf begins three nautical miles from the coastline. 43 U.S.C. §§ 1301(b), 1312; *United States v. Louisiana*, 363 U.S. 1, 66 (1960); *United States v. Florida*, 363 U.S. 121, 129 (1960). The outer boundary of the OCS shelf extends roughly two hundred nautical miles into the ocean to the seaward limit of the international-law jurisdiction of the United States. 43 U.S.C. § 1312; *Ctr. for Sustainable Econ.*, 779 F.3d at 592.

In 1945, President Truman, recognizing the "long range world-wide need for new sources of petroleum and other minerals," exercised the United States' control over the natural resources of the OCS by issuing the "Truman Proclamation." Proclamation No. 2667, 10 Fed. Reg. 12,303 (Sept. 28, 1945). The Proclamation informed other nations that:

> the Government of the United States regards the natural resources of the subsoil and sea bed of the continental shelf beneath the high seas but contiguous to the coasts of the United States as appertaining to the United States, subject to its jurisdiction and control.

Id. Shortly thereafter, President Truman issued another Executive Order to reserve and set aside the Outer Continental Shelf's natural resources under the jurisdiction and control of the Secretary of the Interior. Exec. Order 9633, 10 Fed. Reg. 12,305 (Oct. 2, 1945).

In 1953, Congress enacted OCSLA, which governs the management of mineral resources on the OCS. *See* 43 U.S.C. §§ 1331-1356(c). In passing OCSLA, Congress declared that the oil and gas reserves beneath the OCS are "a vital national resource . . . which should be made available for expeditious and orderly development, subject to environmental safeguards, in a manner which is consistent with the maintenance of competition and other national needs." *Id.* § 1332(3). A congressional report issued upon OCSLA's enactment similarly declared that: "The principal purpose of [OCSLA] is to authorize the leasing by the Federal Government of [] the shelf." H.R. Rep. No. 413, 83rd Congress, 1st Sess. (1953), reprinted in 1953 U.S.C.C.A.N. 2177, 2178.

Consistent with this purpose, OCSLA sets forth a four-stage process to allow development of oil or gas: (1) the Department of the Interior prepares a five-year program of proposed lease sales across the OCS, *see* 43 U.S.C. § 1344; (2) the Department may hold lease sales and issues leases in accordance with the program, *see id.* §§ 1337(a), 1344(d); (3) the Department reviews the lessee's exploration plans, *see id.* § 1340; and (4) the Department, in consultation with state and local governments, reviews the lessee's development plans. *See id.* §

1351; *see also Native Village of Point Hope v. Jewell*, 740 F.3d 489, 493 (9th Cir. 2014); *Ctr. for Sustainable Econ.*, 779 F.3d at 594.

The five-year leasing program must address the nation's energy needs for a five-year period and "serves as the template for the Government's leasing of drilling rights on the [Shelf] for the five-year period following its preparation." *Ctr. for Sustainable Econ.*, 779 F.3d at 592 n.6; *see also* 43 U.S.C. § 1344. The five-year program establishes a schedule for potential lease sales, but it does not itself require those sales to occur or authorize any oil and gas activities. *See id.* Under the statute, the leasing program "considers economic, social, and environmental values of the renewable and nonrenewable resources contained in the [OCS], and the potential impact of oil and gas exploration on other resource values of the [OCS] . . . ." *Id.* § 1344(a)(1). Similar requirements apply to the remaining three steps. Leasing and later development of oil and gas resources on the OCS can only occur pursuant to this program. *See, e.g., id.* § 1344(d)(3). Even exploration, such as seismic surveys, can only occur after the proponent of a survey obtains the relevant federal permits or plan approvals, which are subject to environmental and other procedural requirements. *See id.* § 1340; 30 C.F.R. pt. 551.

OCSLA also contains a provision allowing the President to reserve areas of the OCS from disposition by leasing, including for oil and gas development. Specifically, section 12(a) states, "The President of the United States may, from time to time, withdraw from disposition

any of the unleased lands of the outer Continental Shelf." 43 U.S.C. § 1341(a). The statute also provides that "[t]he United States reserves and retains the right to designate by and through the Secretary of Defense, with the approval of the President, as areas restricted from exploration and operation that part of the [OCS] needed for national defense . . . ." *Id.* § 1341(d).

LEGAL STANDARD FOR A MOTION TO DISMISS

Pursuant to Fed. R. Civ. P. 12(b)(1), a complaint, or any claims therein, may be dismissed for lack of subject matter jurisdiction. An attack on the court's jurisdiction may be made either as a facial challenge, in which case the usual pleading standard applies, or as a factual challenge. *Leite v. Crane Co.*, 749 F.3d 1117, 1121 (9th Cir. 2014).[1] In response to a facial challenge, a plaintiff may rely on factual allegations, which the court will accept "as true and drawing all reasonable inferences in the plaintiff's favor." *Id.* On the other hand, when considering a motion that challenges the existence of jurisdiction in fact, no presumption of truthfulness attaches to the plaintiff's allegations. *Thornhill Pub. Co. v. Gen. Tel. & Elecs. Corp.*, 594 F.2d 730, 733 (9th Cir. 1979). The Court "is not restricted to the face of the

[1] Defendants' motion is brought both as a factual and facial challenge. To the extent the Defendants' challenge Plaintiffs' assertions of imminent harm with factual information in the standing and ripeness arguments in sections I and II of the Argument section, it is a factual challenge. Otherwise, it is a facial challenge.

pleadings, but may review any evidence, such as affidavits and testimony, to resolve factual disputes concerning the existence of jurisdiction." *McCarthy v. United States*, 850 F.2d 558, 560 (9th Cir. 1988). "When the defendant raises a factual attack, the plaintiff must support her jurisdictional allegations with 'competent proof,' under the same evidentiary standard that governs in the summary judgment context." *Liete*, 749 F.3d at 1121 (citations omitted); *see also Friends of the Earth v. Sanderson Farms, Inc.*, 992 F.3d 939, 944 (9th Cir. 2021). "The plaintiff bears the burden of proving by a preponderance of the evidence that each of the requirements for subject-matter jurisdiction has been met." *Liete*, 749 F.3d at 1121.

ARGUMENT

I. Plaintiffs Lack Standing and Their Claims Are Not Ripe

Plaintiffs have failed to demonstrate any imminent harm to their interests caused by President Trump's rescission of the OCS withdrawals. Therefore, they lack standing, and their claims are not ripe.

A. Plaintiffs Have Failed to Demonstrate Standing

Plaintiffs bear the burden of demonstrating that they have standing under Article III of the Constitution. *Summers v. Earth Island Inst.*, 555 U.S. 488, 493 (2009); *see also Bowen v. Energizer Holdings, Inc.*, 118 F.4th 1134, 1142 (2024).

CONCLUSION

For the foregoing reasons, Plaintiffs' Complaint should be dismissed for lack of jurisdiction.

Respectfully submitted this 16th day of January 2026.

ADAM R.F. GUSTAFSON
Acting Assistant Attorney General
Environment & Natural Resources Division
United States Department of Justice

/s/ Luther L. Hajek
Luther L. Hajek
Trial Attorney
United States Department of Justice
Environment and Natural Resources Division
999 18th Street, North Terrace, Suite 600
Denver, CO 80202
Tel: (303) 241-0826 / Fax: (303) 844-1350
luke.hajek@usdoj.gov
Counsel for Defendants